

# Complaints Procedure

Informative translation — the Czech version prevails.

Poutník · GM Rent&Diggers s.r.o., Plovární 478/1, 301 00 Plzeň, IČO 23741392, DIČ CZ23741392

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## 1. Scope of this procedure

This complaints procedure governs how to exercise rights arising from defective performance (a complaint) in respect of the vehicle-rental service provided by GM Rent&Diggers s.r.o. to consumers under a contract for the hire of a means of transport and the General Terms and Conditions.

## 2. How and where to file a complaint

File your complaint in writing by e-mail to [honza@frantisekdron.cz](mailto:honza@frantisekdron.cz), by phone on +420 723 707 958, or in person when collecting or returning the vehicle. Report the defect without undue delay after you discover it — ideally already at collection, by noting it in the handover protocol.

## 3. What you need to provide

- Your booking or rental contract number
- A description of the defect and the circumstances in which it was discovered
- Photographic evidence of the defect
- The handover protocol, if one was drawn up when you collected the vehicle

## 4. Time limit for handling a complaint

We will handle your complaint, including remedying the defect, without undue delay and no later than 30 days from the date it is filed, unless we agree with you on a longer period (Section 19 of Act No. 634/1992 Coll., on Consumer Protection).

## 5. Rights arising from defective performance

If the vehicle has a defect at the time of handover or during the rental that prevents its agreed use, you are entitled under Sections 1914–1925 and Sections 2205–2208 of the Civil Code (lease) in particular to:

- have the defect removed, i.e. the vehicle repaired
- a replacement vehicle of a comparable category, if available
- a reasonable discount on the rental fee for the period during which the defect persisted
- in the event of a material breach of contract, withdraw from the contract and have the rental fee for unused days refunded

## 6. Handling and written confirmation

We will issue you with written confirmation of receipt of the complaint, stating the date it was filed, its content and the requested method of resolution; once resolved, we will issue confirmation of the date and manner of resolution (Section 19(1) of Act No. 634/1992 Coll.).

## 7. Out-of-court dispute resolution

If we cannot reach an agreement, as a consumer you have the right to out-of-court dispute resolution before the Czech Trade Inspection Authority (ČOI), based at Štěpánská 796/44, 110 00 Prague 1, website [www.coi.cz](http://www.coi.cz), under Section 20d et seq. of Act No. 634/1992 Coll., on Consumer Protection.

## 8. Contact

GM Rent&Diggers s.r.o., Plovární 478/1, 301 00 Plzeň · [honza@frantisekdron.cz](mailto:honza@frantisekdron.cz) · +420 723 707 958

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